

Israr Khan v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 22 February 2023 · WRIT - C No. 3468 of 2023 · **Disposed; theft recovery withdrawn without deciding the dues.**

HEADNOTE

Writ against a theft-of-electricity demand notice disposed of after the department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing, strictly under the U.P. Electricity Supply Code, 2005. No clause was construed.

FACTUAL SUMMARY

Israr Khan challenged a 14 October 2022 demand notice for recovery of electricity dues in a theft case. Pursuant to an earlier Writ Court order he had objected to the provisional assessment, and he contended that the department never decided that objection before issuing a final assessment. On 15 February 2023 departmental counsel sought time to verify whether the objection had been decided. On 22 February 2023 counsel stated, on instructions, that the impugned recovery had been withdrawn and a fresh order would follow after hearing.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Disposal on withdrawal of theft recovery

HOLDING

The writ was disposed of on the electricity department's statement that the impugned recovery in a theft case had been withdrawn, with liberty to the respondents to pass a fresh order after hearing the petitioner, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court did not construe any clause. ¶ 4

PRINCIPLE TAGS

procedural-listing-no-construction

The docket is four short orders: two adjournments, a further adjournment to check whether the objection to provisional assessment was decided, and a disposal on counsel's statement that the theft recovery was withdrawn and a fresh order would follow after hearing under the Supply Code. No clause is construed. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OBJECTION TO THE PROVISIONAL ASSESSMENT HAD BEEN DECIDED BEFORE THE FINAL ASSESSMENT.

Departmental counsel sought time to ascertain this; the recovery was then withdrawn without a finding. ¶ 3-4

NOT DECIDED — THE LEGALITY AND QUANTUM OF ANY FRESH ASSESSMENT OF THE ALLEGED THEFT.

Left to a fresh order after hearing, under the Supply Code procedure. ¶ 4